

STATE OF NEW YORK

5855--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. JACKSON -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the New York city charter and the administrative code of the city of New York, in relation to requiring the administration for children's services and New York city public school employees provide a verbal and written warning of the student's right to refuse an interview and right to a supportive adult during the interview

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The New York city charter is amended by adding a new section 619 to read as follows:

§ 619. Rights of students during interviews. When a student is interviewed on school grounds by an employee of the administration for children's services, such employee shall provide the student with both a verbal and written warning that the student has the right to refuse the interview, the student must consent to the interview for the interview to occur, and the student has the right to have a supportive adult present at the interview.

§ 2. Title 21-A of the administrative code of the city of New York is amended by adding a new chapter 11 to read as follows:

CHAPTER 11

STUDENT INTERVIEWS

§ 21-973 Rights of students during interviews. When a student is interviewed on school grounds by an employee of the administration for children's services, such employee shall provide the student with both a verbal and written warning that the student has the right to refuse the interview, the student must consent to the interview for the interview to occur, and the student has the right to have a supportive adult present at the interview.

§ 3. This act shall take effect on the thirtieth day after it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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